

M/s Parihar Dugdh Avsheetal And Ice Plant v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 6 August 2019 · Writ-C No. 24080 of 2019 · **Writ dismissed; relegated to CGRF/Ombudsman under clause 7.10.**

HEADNOTE

A consumer still dissatisfied with a revised electricity bill issued after the Executive Engineer considered a claim under a prior High Court direction must complain to the Consumer Grievance Redressal Forum and Ombudsman under Clause 7.10 of the U.P. Electricity Supply Code, 2005. Extraordinary writ jurisdiction will not be exercised in the face of that alternative remedy.

FACTUAL SUMMARY

The petitioner, an ice plant, sought quashing of a revised electricity assessment bill dated 3 May 2019 and a recovery certificate dated 25 July 2018. In an earlier writ (Writ Petition No. 13316 of 2019) the High Court had directed the Executive Engineer to consider the petitioner's claim and rectify the bill if necessary. The Executive Engineer thereafter issued a corrected bill on 3 May 2019. The petitioner remained dissatisfied with that revised bill and returned to the writ court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

billing-grievance-CGRF-ombudsman

HOLDING

A consumer still aggrieved by a revised electricity bill issued after the Executive Engineer considered and corrected the bill pursuant to a prior High Court direction must prefer a complaint before the Consumer Grievance Redressal Forum and Ombudsman under Clause 7.10 of the U.P. Electricity Supply Code, 2005; extraordinary writ jurisdiction will not be exercised in the face of that alternative remedy. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances A consumer still dissatisfied with a revised electricity bill issued after the Executive Engineer considered a claim under a prior High Court direction must complain to the Consumer Grievance Redressal Forum and Ombudsman under Clause 7.10 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE REVISED ASSESSMENT BILL DATED 03.05.2019 AND THE RECOVERY CERTIFICATE DATED 25.07.2018

Dismissed for alternative remedy without examining the bill or recovery on merits. ¶ 1